

§ 9.47 Duties of local officers in regard to their persons with a mental illness.

* (a) All directors of community services, health officers, and social services officials, as defined by the social services law, are charged with the duty of seeing that all persons with a mental illness within their respective communities who are in need of care and treatment at a hospital are admitted to a hospital pursuant to the provisions of this article. Social services officials and health officers shall notify the director of community services of any such person coming to their attention. Pending the determination of the condition of an alleged person with a mental illness, it shall be the duty of the director of community services and, if there be no such director, of the local health officer to provide for the proper care of such person in a suitable facility.

* NB Effective until June 30, 2027

* All directors of community services, health officers, and social services officials, as defined by the social services law, are charged with the duty of seeing that all persons with a mental illness within their respective communities who are in need of care and treatment at a hospital are admitted to a hospital pursuant to the provisions of this article. Social services officials and health officers shall notify the director of community services of any such person coming to their attention. Pending the determination of the condition of an alleged person with a mental illness, it shall be the duty of the director of community services and, if there be no such director, of the local health officer to provide for the proper care of such person in a suitable facility.

* NB Effective June 30, 2027

* (b) All directors of community services shall be responsible for:

- (1) receiving reports of persons who may be in need of assisted outpatient treatment and documenting the receipt date of such reports;
- (2) conducting timely investigations of such reports and providing written notice upon the completion of investigations to reporting persons and program coordinators, appointed by the commissioner of mental health pursuant to subdivision (f) of section 7.17 of this title, and documenting the initiation and completion dates of such investigations and the dispositions;

(3) filing of petitions for assisted outpatient treatment pursuant to paragraph (vii) of subdivision (e) of section 9.60 of this article, and documenting the petition filing date and the date of the court order;

(4) coordinating the timely delivery of court ordered services with program coordinators and documenting the date assisted outpatients begin to receive the services mandated in the court order; and

(5) ensuring evaluation of the need for ongoing assisted outpatient treatment pursuant to subdivision (k) of section 9.60 of this article prior to the expiration of any assisted outpatient treatment order;

(6) if he or she has been ordered to provide for or arrange for assisted outpatient treatment pursuant to paragraph five of subdivision (j) of section 9.60 of this article or became the appropriate director pursuant to this paragraph or subdivision (c) of section 9.48 of this article, notifying the director of community services of the new county of residence when he or she has reason to believe that an assisted outpatient has or will change his or her county of residence during the pendency of an assisted outpatient treatment order. Upon such change of residence, the director of the new county of residence shall become the appropriate director, as such term is defined in section 9.60 of this article; and

(7) reporting on a quarterly basis to program coordinators the information collected pursuant to this subdivision.

* NB Repealed June 30, 2027

* (c) In discharge of the duties imposed by subdivision (b) of section 9.60 of this article, directors of community services may provide services directly, or may coordinate services with the offices of the department or may contract with any public or private provider to provide services for such programs as may be necessary to carry out the duties imposed pursuant to this subdivision.

* NB Repealed June 30, 2027